

23AVCV01081 23AVCV01081

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Case Number: 23AVCV01081 Hearing Date: July 7, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

BIANCA URRUTIA; ANTHONY CASAS; ANTHONY CASAS JR., a minor, by Bianca Urrutia, his guardian ad litem;
SERENITY CASAS, a minor, by Bianca Urrutia, as her guardian ad litem,

Plaintiffs,

v.

BEST WESTERN INTERNATIONAL, INC.; BAINS HOSPITALITY LLC; BEST WESTERN PLUS DESERT POPPY INN;
MANNY BAINS; and DOES 1 through 20, inclusive,

Defendants.

Case Number 23AVCV01081

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing:

July 7, 2026

Dept. A-14

Judge William H. Forman

I. Background

The instant case arises from alleged personal injuries and damages sustained by Plaintiffs Bianca Urrutia, Anthony Casas, Anthony Casas, Jr., and Serenity Casas (collectively, "Plaintiffs") after staying at the Best Western Plus Desert Poppy Inn on September 28, 2021, that is owned, operated, and managed by Defendant Bains Hospitality, LLC ("Defendant"), and located at 2038 W. Ave I, Lancaster, CA 93536 ("Motel").

On August 28, 2025, Defendant filed a Demurrer to the First Amended Complaint with Motion to Strike, specifically demurring to the first, third, fourth, fifth, sixth, and seventh causes of action for failure to sufficiently plead facts to sustain the claims. The Court sustained the Demurrer with leave to amend and granted the Motion to Strike as to the punitive damages demand and denied otherwise on November 18, 2025.

On December 22, 2025, Plaintiffs filed their Second Amended Complaint ("SAC") against Defendants Bains Hospitality LLC, Best Western Plus Desert Poppy Inn, Manny Bains, and Does 1 through 20, alleging seven causes of action: (1) battery; (2) negligence; (3) intentional infliction of emotional distress; (4) fraudulent concealment; (5) private nuisance; (6) public nuisance; and (7) breach of contract.

On February 18, 2026, Defendant filed the operative Demurrer to the SAC with Motion to Strike, specifically demurring to the first, third, fourth, fifth, sixth, and seventh causes of action for failure to sufficiently plead facts to sustain the claims.

No opposition has been filed.[1]

II. Analysis

Standard for Demurrer –The grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (Code Civ. Proc., § 430.30, subd. (a); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Concerning the legal sufficiency of a pleading, the sole issue on demurrer is whether the facts pleaded, if true, state a valid cause of action – i.e., if the complaint pleaded facts that would entitle the plaintiff to relief. (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 339.)

A general demurrer admits the truth of all factual, material allegations properly pled in the challenged pleading, regardless of possible difficulties of proof. (*Blank*, supra, 39 Cal.3d at p. 318.) Thus, no matter how unlikely or improbable, plaintiff's allegations must be accepted as true for the purpose of ruling on the demurrer. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) Nevertheless, this rule does not apply to allegations expressing mere conclusions of law, or allegations contradicted by the exhibits to the complaint or by matters of which judicial notice may be taken. (*Vance v. Villa Park Mobilehome Estates* (1995) 36 Cal.App.4th 698, 709.) A general demurrer does not admit contentions, deductions, or conclusions of fact or law alleged in the complaint; facts impossible in law; or allegations contrary to facts of which a court may take judicial notice. (*Blank*, supra, 39 Cal.3d at p. 318.)

Pursuant to Code of Civil Procedure section 430.10, subdivision (e), the party against whom a complaint has been filed may object by demurrer to the pleading on the grounds that the pleading does not state facts sufficient to constitute a cause of action. It is an abuse of discretion to sustain a demurrer if there is a reasonable probability that the defect can be cured by amendment. (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1082, as modified (Dec. 23, 2003).)

The Court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The Court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the Court. (*Id.*, § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (*Id.*, § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (*Id.*, § 437.)

"A failure to oppose a motion may be deemed a consent to the granting of the motion." (Cal. Rules of Court, rule 8.54(c).)

When a demurrer is sustained or a motion to strike is granted, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (Blank, supra, 39 Cal.3d at p. 318.) When a plaintiff "has pleaded the general set of facts upon which his cause of action is based," the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not "be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars." (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.)

Meet and Confer – On review of the moving papers, the Court finds that Defendant satisfied the meet and confer requirements pursuant to Code of Civil Procedure section 430.41 to bring the instant demurrer. (Mark P. LaScola Decl.) Accordingly, the Court turns to the merits.

First Cause of Action (Battery) –

Defendant demurs to the first cause of action on the grounds that the SAC fails to state sufficient facts to sustain a claim for battery. Defendant specifically argues that the SAC does not allege facts establishing intentionality.

"The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching." (So v. Shin (2013) 212 Cal.App.4th 652, 668-69.)

The Court sustained the demurrer to the FAC as to this cause of action because it found Defendant's failure to identify an infestation of bedbugs did not rise to the level of intentionality required, and Plaintiffs failed to allege any facts showing that Defendant actually knew of the alleged infestation other than making conclusory allegations.

In the SAC, Plaintiffs contend that Defendants "intentionally subjected Plaintiffs to harmful and offensive bodily contact by affirmatively assigning Plaintiffs to and renting a guest room at the [motel] despite knowledge of bedbug complaints and bedbug conditions at the property, with knowledge that bedbug bites were substantially certain to occur as a result of that assignment." (SAC ¶ 50.) Plaintiffs allege that Defendant was aware of bedbug infestations at the motel both prior to and on the date of the alleged incident, pointing to public records. (SAC ¶¶ 43, 48.)

Second, Plaintiffs argue that Defendants' prior knowledge of bedbug complaints and conditions at the motel, their failure to warn Plaintiffs of the possibility of bedbugs, and their knowledge that harmful or offensive contact was substantially certain to occur satisfy the intent element. (SAC ¶¶ 51, 54.) Plaintiffs argue that Defendants' failure to "properly and thoroughly inspect and clean the room assigned to Plaintiffs to ensure it was free from bedbugs prior to renting the room," "to adequately treat and eliminate bedbug conditions," "to implement reasonable inspection protocols to detect and prevent bedbug infestations," "to properly train housekeeping and maintenance staff regarding bedbug detection and remediation," to warn Plaintiffs, and the assignment to a room despite knowledge of previous complaints give rise to offensive contact. (SAC ¶ 53.)

Lastly, Plaintiffs allege that they did not consent to the offensive contact, as evidenced by their complaints to the motel staff, and a reasonable person would not consent to being bitten by bedbugs. (SAC ¶ 58.)

Defendant contends that the SAC does not sufficiently plead material facts establishing Defendant's "intent to do the harmful act." (Mot., at p. 2.) Upon review of the SAC, the Court agrees. For battery, "[t]he pivotal question [as to mens rea] is whether the defendant intended to commit an act likely to result in such physical force." (People v. Thurston (1999) 71 Cal.App.4th 1050, 1054, quoting People v. Colantuono (1994) 7 Cal.4th 206, 217-218.) Plaintiffs have failed to plead facts establishing that Defendant or its employees caused Plaintiffs to be touched with the intent to harm or offend Plaintiffs. The SAC maintains similar allegations as the FAC and fails to provide further facts to step over the bar for the intent element. Plaintiffs also fail to support their conclusory assertion that Defendant or its employees knew that their specific room was infested with bedbugs. Plaintiffs allege that public records from the Department of Public Health for the County of Los Angeles relating to the motel reflect that complaints had been filed concerning the presence of bedbugs in 2021 and 2022 (SAC ¶ 48), but the allegation fails to state whether these complaints resulted in Defendant's agents and/or employees having actual knowledge of an infestation in Plaintiff's room prior to their stay. Without this knowledge, an alleged failure to protect Plaintiffs from bed bugs does not constitute a battery under California law.

Accordingly, the Court SUSTAINS the demurrer as to the first cause of action.

Third Cause of Action (Intentional Infliction of Emotional Distress) –

Defendant demurs to the third cause of action on the grounds that the SAC fails to state sufficient facts to sustain a claim for intentional infliction of emotional distress. Defendant specifically argues that the SAC does not allege facts establishing that Defendant engaged in "extreme and outrageous conduct" with an intent to cause emotional distress.

"The elements of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009, cleaned up.)

The Court sustained the demurrer to the FAC as to this cause of action because it found Defendant's conduct did not rise to outrageous or exceeding that of what is tolerated in a civilized community and Plaintiffs did not provide evidence showing Defendant was aware of any alleged infestation or demonstrated a conscious disregard for Plaintiffs' wellbeing.

In the SAC, Plaintiffs contend that Defendants "knowingly and deliberately chose to rent and assign Plaintiffs to a guest room at the [motel] despite knowledge of bedbug complaints and bedbug conditions at the property, which conduct caused Plaintiffs physical injury and severe emotional distress. Defendants' conduct exceeds all bounds of that usually tolerated in a civilized community, as paying hotel guests reasonably expect to be provided a safe and habitable room free from insect infestations and to be warned of known dangerous conditions." (SAC ¶ 81.)

Plaintiffs argue that Defendants' "conscious disregard of bedbug complaints and bedbug conditions at the Subject Hotel," "intentional failure to disclose the presence or risk of bedbugs to Plaintiffs prior to or at check-in," "affirmative decision to rent and assign Plaintiffs to a guest room despite knowledge of bedbug conditions," "failure to take reasonable measures to inspect, remediate, or remove affected rooms from service prior to Plaintiffs' stay," "tolerance of practices that allowed bedbug conditions to persist within guest rooms," "failure to implement or enforce adequate policies and procedures to protect guests from exposure to bedbugs," and "conscious indifference to the high probability that guests assigned to affected rooms would suffer physical injury and severe emotional distress" amount to intentional, conscious, and outrageous conduct. (SAC ¶ 82.)

As to the second element, Plaintiffs argue that Defendants "knew or should have known that intentionally assigning hotel guests to rooms affected by bedbug conditions and concealing such conditions would result in severe emotional distress, yet consciously disregarded that risk." (SAC ¶ 88.) Lastly, Plaintiffs allege that as a direct and proximate result of Defendant's

actions, they suffered severe emotional distress, leading to “serious and permanent injuries.” (SAC ¶ 90.)

Defendant contends that the SAC does not sufficiently plead material facts establishing Defendant engaged in “extreme and outrageous conduct” with an intent to cause emotional distress. (Mot., at p. 4.) Upon review of the SAC, the Court agrees. First, Plaintiffs fail to allege any conduct by Defendant that rises to “outrageous” or “extreme.” A reasonable person would not find Defendant’s alleged failure to disclose the presence or risk of bedbugs prior to check-in as exceeding the bounds of civilized society. Plaintiffs also make conclusory allegations that Defendant was aware of an alleged infestation in their room based on public records as mentioned above without providing details about the complaints, if they were made prior to this incident, or if Defendant or its employees were aware of said complaints. Thus, Plaintiffs also fail to allege any extreme or outrageous conduct by Defendant caused Plaintiffs’ emotional distress. Plaintiffs also do not plead with specificity what the resulting emotional distress is other than a general allegation of severe distress that has caused serious injuries. And as mentioned above, the SAC maintains similar allegations as the FAC and fails to provide further facts to step over the bar for the intent element.

Accordingly, the Court SUSTAINS the demurrer as to the third cause of action.

Fourth Cause of Action (Fraudulent Concealment) –

Defendant demurs to the fourth cause of action on the grounds that the SAC fails to state sufficient facts to sustain a claim for fraudulent concealment. Defendant specifically argues that the SAC does not allege facts with the requisite specificity establishing that Defendant intentionally concealed a material fact and/or intended to defraud Plaintiffs.

“The elements of fraud are (a) a misrepresentation (false representation, concealment, or nondisclosure); (b) scienter or knowledge of its falsity; (c) intent to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Hinesley v. Oakshade Town Ctr. (2005) 135 Cal.App.4th 289, 294.) The facts constituting the alleged fraud must be alleged factually and specifically as to every element of fraud, as the policy of “liberal construction” of the pleadings will not ordinarily be invoked. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) To properly allege fraud against a corporation, the plaintiffs must plead the names of the persons allegedly making the false representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 157.)

The Court sustained the demurrer to the FAC as to this cause of action because it found Plaintiff has not sufficiently pled that Defendants knew of any alleged infestation and such there cannot be intent.

In the SAC, Plaintiffs contend that Defendant possessed superior knowledge regarding the existence of bedbugs, which was material to Plaintiffs’ decision to rent the room, and thus had a duty to disclose. (SAC ¶¶ 94-95, 99.) Second, Plaintiffs argue that Defendant “intentionally concealed and failed to disclose the existence of bedbug conditions at the time of check-in and room assignment, with the intent to induce Plaintiffs to rent and occupy the guest room and to obtain payment for their stay.” (SAC ¶ 100.) Third, Plaintiffs argue that they could not have reasonably known about the bedbugs and reasonably relied on Defendants to disclose unsafe conditions. (SAC ¶ 103.) As a result, Plaintiffs suffered physical and psychological injuries. (SAC ¶ 105.)

The Court notes the following changes between the Compliant, FAC, and SAC:

· Complaint Paragraph 94 [“As evidenced by prior similar incidents and reviews posted on various online platforms by prior guests and invitees, Defendants, and DOES 1 through 20, inclusive, were aware of the presence of the infestation of bedbugs, and the like, to be present in the rooms at their Subject Hotel.”] is not in either the FAC or SAC

· FAC Paragraph 96 ["Defendants, and DOES 1 through 20, inclusive, had knowledge and were on notice of the existing bedbug infestation at the Subject Hotel as evidenced by the extensive online reviews by other prior guests which indicates presence of said infestation and conditions present at the Subject Hotel. Given this existing knowledge of the unsanitary conditions and infestation, Defendants, and DOES 1 through 20, inclusive, failed to inform Plaintiffs of said conditions existing in the room to which they were assigned. Defendants, and DOES 1 through 20, inclusive, failed to make any representations to the Plaintiffs regarding this infestation present at the Subject Hotel. In fact, Plaintiffs were unaware of the said conditions until after being assigned to the room at the Subject Hotel."] was removed from the SAC.

· SAC Paragraph 98 ["Any general or anecdotal information that may have existed in publicly available online reviews did not disclose the specific, material facts known to Defendants, including the existence of bedbug conditions affecting guest rooms, and did not place Plaintiffs on notice of the concealed conditions in the exact room assigned to them."] is not found in the FAC or Complaint.

"Under the sham-pleading doctrine, admissions in an original complaint that has been superseded by an amended pleading remain within the court's cognizance and the alteration of such statements by amendment designed to conceal fundamental vulnerabilities in a plaintiff's case will not be accepted." (Lockton v. O'Rourke (2010) 184 Cal.App.4th 1051, 1061) As the Court stated in the ruling on the demurrer to the FAC where this issue was once again noted, while inconsistent theories of recovery are permitted, a pleader cannot blow hot and cold as to the facts positively stated, regardless of whether the pleading is verified. (Manti v. Gunari (1970) 5 Cal. App. 3d 442, 449, 450) In reference to the antagonistic allegations in the single cause of action the court is required to take as true the averments in the complaint which bear most strongly against the pleader. (Manti, supra, 5 Cal. App. 3d at 450.) In other words, "the general rule [. . .] is that material factual allegations in a verified pleading that are omitted in a subsequent amended pleading without adequate explanation will be considered by the court in ruling on a demurrer to the later pleading." (Shoemaker v. Myers (1990) 52 Cal.3d 1, 12.)

Just as was found in the previous order, the Court believes that the statement that "Plaintiffs did not know, and could not reasonably have known, of the concealed bedbug conditions at the time of check-in and reasonably relied on Defendants to disclose any known conditions rendering the room unsafe or uninhabitable[]" contradicts the facts alleged in the Complaint, the FAC, as well as the current SAC. (SAC ¶ 103.) Per Plaintiffs' own allegations, the online reviews provided Plaintiffs with a way of knowing that there was an alleged bedbug issue prior to renting the hotel room. (SAC ¶ 27.)

The Court next turns to the arguments in the Demurrer.

Defendant contends that the SAC does not sufficiently plead material facts with the requisite specificity establishing that Defendant intentionally concealed a material fact and/or intended to defraud Plaintiffs. (Mot., at pgs. 4-6.) Upon review of the SAC, the Court agrees. Plaintiff does not allege with particularity or specificity any false statements Defendant or Defendant's employees made to Plaintiff or when these false statements were made or by whom. Plaintiffs make general allegations about a duty to disclose the alleged bedbug conditions by the front desk personnel and hotel management when checking in. As has been established above, however, Plaintiffs have not sufficiently pled that Defendants knew of any alleged infestation. Thus, due to the lack of sufficiently pled facts regarding the alleged misrepresentation, Plaintiffs do not sufficiently plead the statements were false or that Defendant and its employees knew the misrepresentations were false and intended to defraud or induce Plaintiffs' reliance. Plaintiffs also do not plead with specificity regarding the resulting damages other than a general allegation about physical and psychological injuries.

Accordingly, the Court SUSTAINS the demurrer as to the fourth cause of action.

The Court also notes that Plaintiffs watered down the mentions to online reviews and alleged more general claims "Under the sham-pleading doctrine, admissions in an original complaint that has been superseded by an amended pleading remain within the court's cognizance and the alteration of such statements by amendment designed to conceal fundamental vulnerabilities in a plaintiff's case will not be accepted." (Lockton v. O'Rourke (2010) 184 Cal.App.4th 1051, 1061)

Fifth and Sixth Causes of Action (Private & Public Nuisance) –

Defendant demurs to the fifth and sixth causes of action on the grounds that the SAC fails to state sufficient facts to sustain a claim for private and public nuisance. Defendant specifically argues that the SAC does not allege material facts establishing that Defendant specifically and unreasonably caused Plaintiffs to suffer substantial harm.

Pursuant to Civil Code section 3480, “[a] public nuisance is one which affects at the same time an entire community or neighborhood, or any considerable number of persons, although the extent of the annoyance or damage inflicted upon individuals may be unequal.” “A private person may maintain an action for a public nuisance, if it is specially injurious to himself, but not otherwise.” (Civ. Code § 3493.) “Every nuisance not included in the definition of the last section is private.” (Civ. Code § 3481.)

To establish an action for private nuisance, (1) “the plaintiff must prove an interference with his use and enjoyment of his property”; (2) “the invasion of the plaintiff’s interest in the use and enjoyment of the land must be substantial, that is, that it causes the plaintiff to suffer substantial actual damage”; (3) “the interference with the protected interest must not only be substantial, but it must also be unreasonable, i.e., it must be of such a nature, duration, or amount as to constitute unreasonable interference with the use and enjoyment of the land.” (*Mendez v. Rancho Valencia Resort Partners, LLC* (2016) 3 Cal.App.5th 248, 262-263, cleaned up.) Public nuisances are “substantial and unreasonable” “offenses against, or interferences with, the exercise of rights common to the public.” (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 305.)

The Court sustained the demurrer to the FAC as to the public nuisance cause of action because it found that Plaintiffs failed to present any precedence of the infestation spreading from their room to the community at large, especially at the same point in time. As to the private nuisance claim, the Court found that because the underlying facts for both the Negligence and Nuisance claims are the same, bedbugs, under California precedent the nuisance is a negligence claim.

In the SAC, Plaintiffs contend that the presence of bedbugs constitutes a nuisance pursuant to Civil Code section 3479, et seq., because the conditions “were injurious to Plaintiffs’ health and safety, offensive to Plaintiffs’ senses, and substantially interfered with Plaintiffs’ comfortable enjoyment and use of the guest room.” (SAC ¶¶ 110, 112.) Plaintiffs argue that Defendant negligently and intentionally caused and maintained unsanitary and uninhabitable conditions at the motel, interfering with Plaintiffs’ right to safely occupy and enjoy the motel room and making the room unfit for its intended purpose. (SAC ¶¶ 113, 122.) As a result, Plaintiffs suffered damages, emotional distress, and property damage. (SAC ¶ 116.)

Specifically, as to the public nuisance claim, Plaintiffs argue that Defendant owned, operated, and maintained the motel as a “public accommodation,” the nuisance affected a considerable number of people due to the contagious nature of bedbugs and the transitory nature of motel guests, and Plaintiffs suffered special injury because they were exposed to bedbug bites. (SAC ¶¶ 119, 123, & 125.)

Defendant contends that the SAC does not allege material facts establishing that Defendant specifically and unreasonably caused Plaintiffs to suffer substantial harm. (Mot., at pgs. 6-7.) Upon review of the SAC, the Court agrees. First, “[a]lthough ‘any interest sufficient to be dignified as a property right’ will support an action based on a private nuisance, and this includes within its purview a tenancy for a term, such right does not inure in favor of a licensee, lodger or employee. [citation omitted]” (*Venuto v. Owens-Corning Fiberglas Corp.* (1971) 22 Cal.App.3d 116, 125.) A regular motel guest (not a long-stay one) is usually a licensee; Plaintiffs have not established a sufficient property interest. Plaintiffs specifically allege that they entered into a lodging contract. (SAC ¶ 129.) Also, as noted in this Court’s previous tentative, under California case precedent there cannot be separate claims for negligence and private nuisance when they rely on the same facts; where both causes of action are brought in reliance on the same facts, the nuisance is a negligence claim. (*El Escorial Owners’ Assn. v. DLC Plastering, Inc.* (2007) 154 Cal.App.4th 1337, 1349.) Here, the underlying facts for both the Negligence and Private Nuisance claims are the same (i.e., bedbugs).

Second, as to public nuisance, while Plaintiffs allege that they suffered a special injury (bedbug bites), they have not sufficiently established on the SAC’s face that the bedbug condition affected a considerable number of people and that their

injury was qualitatively different from the general risk the general public would face from a bedbug infestation. In addition, while Plaintiffs state that there is a potential to spread infestation from their room, throughout the hotel, and to the community at large, they fail to present any precedence of this occurring in their pleadings other than conclusory statements or that it affected the community at large at the same point in time.

Accordingly, the Court SUSTAINS the demurrer as to the fifth and sixth causes of action.

Seventh Cause of Action (Breach of Contract) –

Defendant demurs to the seventh cause of action on the grounds that the SAC fails to state sufficient facts to sustain a claim for breach of contract. Defendant specifically argues that the SAC at most has pled the existence of a contract and Plaintiffs' performance, but does not allege material facts establishing that Defendant breached the written contract for the hotel room.

To state a cause of action for breach of contract, Plaintiffs must be able to establish "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

If a breach of contract claim "is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference." (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 307.) In some circumstances, a plaintiff may also "plead the legal effect of the contract rather than its precise language." (Construction Protective Services, Inc. v. TIG Specialty Ins. Co. (2002) 29 Cal.4th 189, 198-99.)

The Court sustained the demurrer to the FAC as to this cause of action because it found Plaintiff has not attached a copy of the written contract or provided the terms, instead broadly presenting satisfaction of the elements.

In the SAC, Plaintiffs contend that the parties entered into a lodging contract that included "implied-in-fact terms arising from the nature of the transaction and Defendants' operation of a hotel open to the public, including the provision of a clean, sanitary, and habitable guest room fit for overnight lodging, and a room free from dangerous and unsanitary conditions, including bedbug conditions, at the time Plaintiffs occupied the room." (SAC ¶¶ 129-130.) Second, Plaintiffs state that they performed all material obligations, like paying for the room and complying with hotel policies. (SAC ¶ 131.) Third, Plaintiffs argue that Defendant breached the contract by failing to provide a room that complied with the implied-in-fact terms, like providing a sanitary and inhabitable room. (SAC ¶ 132.) As a result, Plaintiffs suffered damages, like the loss of the benefit of the bargain, out-of-pocket expenses, and personal property damage. (SAC ¶ 133.)

Defendant contends that the SAC does not allege material facts establishing that Defendant breached the written contract for the hotel room. (Mot., at pgs. 7-8.) Upon review of the SAC, the Court agrees. Plaintiffs do not attach the written contract to the SAC, nor does the SAC provide the terms. Plaintiffs only provide general allegations of implied-in-fact terms arising from a hotel's general transactional nature and state Defendant breached these terms "by providing a room that was unsanitary, uninhabitable, and affected by bedbug conditions." (SAC ¶ 132.) Thus, it is not clear on the face of the SAC whether the Defendant breached the contract because the terms are uncertain.

Accordingly, the Court SUSTAINS the demurrer as to the seventh cause of action.

Motion to Strike –

Defendant moves to strike the following:

- On page 5, Introduction, ¶ 26, which reads in part as follows: “An angry hotel guest or poor online reviews can spark attention that can ultimately harm a hotel business’s reputation and bottom line. Defendants, ... have an interest to maintain the reputation and integrity of their Subject Hotel and to continuously monitor guest posted reviews on online platforms such as Expedia, Tripadvisor, Yelp, Google Review, etc.”
- On page 12, First Cause of Action, ¶ 62, which reads as follows: “Plaintiffs are informed and believe, and thereon allege, that the aforesaid conduct of Defendants, ... was carried out with a willful and conscious disregard of Plaintiffs’ right to be free from such tortious behavior, such as to constitute oppression, fraud or malice pursuant to Cal. Civil Code § 3294, and that an officer, director, or managing agent of Defendants, ... authorized or ratified the wrongful acts of employees of Defendants, ... entitling Plaintiffs to punitive damages in an amount appropriate to punish and set an example of Defendants, ...”
- On page 16, Second Cause of Action, ¶ 79, which reads as follows: “Plaintiffs are informed and believe, and thereon allege, that the aforesaid conduct of Defendants, ... was carried out with a willful and conscious disregard of Plaintiffs’ right to be free from such tortious behavior, such as to constitute oppression, fraud or malice pursuant to California Civil Code Section 3294, and that an officer, director, or managing agent of Defendants, ... authorized or ratified the wrongful acts of employees of Defendants, ... entitling Plaintiffs to punitive damages in an amount appropriate to punish and set an example of Defendants, ...”
- On page 19, Third Cause of Action, ¶ 92, which reads as follows: “Plaintiffs are informed and believe, and thereon allege, that the aforesaid conduct of Defendants, ... was carried out with a willful and conscious disregard of Plaintiffs’ right to be free from such tortious behavior, such as to constitute oppression, fraud or malice pursuant to California Civil Code Section 3294, and that an officer, director, or managing agent of Defendants, ... authorized or ratified the wrongful acts of employees of Defendants, ... entitling Plaintiffs to punitive damages in an amount appropriate to punish and set an example of Defendants, ...”
- On page 21, Fourth Cause of Action, ¶ 108, which reads as follows: “Plaintiffs are informed and believe, and thereon allege, that the aforesaid conduct of Defendants, ... was carried out with a willful and conscious disregard of Plaintiffs’ right to be free from such tortious behavior, such as to constitute oppression, fraud or malice pursuant to California Civil Code Section 3294, and that an officer, director, or managing agent of Defendants, ... authorized or ratified the wrongful acts of employees of Defendants, ... entitling Plaintiffs to punitive damages in an amount appropriate to punish and set an example of Defendants, ...”
- On page 26, Prayer for Relief, ¶ 2, which reads as follows: “For punitive damages in an amount to be determined at trial;”

Defendant moves to strike the following sections on the grounds that Plaintiffs cannot recover punitive damages against it under the facts as alleged in the SAC. Specifically, as to Paragraph 27, Defendant argues that the language is incendiary and an “immaterial allegation.” (Mot., at p. 5.)

First, the Court notes that Defendant incorrectly identifies Paragraph 26 in the first bullet, when the referenced language is in Paragraph 27. This immaterial mistake is likely a Scrivener’s error, so the Court turns to the merits.

Based on the Court’s analysis above in the demurrer, Plaintiffs have not alleged facts showing that there has been willful disregard for Plaintiffs, despicable conduct subjecting one to cruelty, or intentional deceit. The Court sustained the demurrer as to the underlying causes of action. Therefore, the demand for punitive damages is improper.

Accordingly, the Motion to Strike is GRANTED in part as to the demands for punitive damages and otherwise DENIED.

Leave to Amend –

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy, (1976), 18 Cal.3d 335, 348.) While under California law leave to amend is liberally granted, "leave to amend should not be granted where, in all probability, amendment would be futile." (Vaillette v. Fireman's Fund Ins. Co. (1993), 18 Cal. App. 4th 680, 685). "A trial court does not abuse its discretion when it sustains a demurrer without leave to amend if either (a) the facts and the nature of the claims are clear and no liability exists, or (b) it is probable from the nature of the defects and previous unsuccessful attempts to plead that the plaintiff cannot state a claim." (Cantu v. Resolution Trust Corp. (1992), 4 Cal.App.4th 857, 889.)

In light of the fact that Plaintiff has not opposed the demurrer, the Court declines to grant leave to amend.

III. Conclusion

Defendant Bains Hospitality, LLC's Demurrer is SUSTAINED without leave to amend.

Defendant Bains Hospitality, LLC's Motion to Strike is GRANTED in part as to the demands for punitive damages and otherwise DENIED.

[1] Counsel Mark P. Lascola states he met and conferred with opposing counsel following his Declaration Requesting a Mandatory 30-day extension, but after exchanging leaving voicemail messages on January 26, 2026 and February 10, 2026, he has not received a response as of the date of this motion's filing. (Lascola Decl., ¶¶ 6-7.)